

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

SECOND JOINT MOTION FOR EXTENSION OF TIME

Complainant, Cool Living LLC (“Cool Living”), and Respondents, ALPI U.S.A., Inc. and ALPI Air & Sea A/S (“ALPI”) (each a “Party” and collectively the “Parties”), respectfully submit this Second Joint Motion for Extension of Time and proposed revised procedural schedule (“Joint Motion”). In so doing, Cool Living requests the withdrawal of its motion to extend filed on July 6, 2026 (Dkt. 34).

The Initial Order in this matter explains that “[p]arties may agree to additional limitations, however, requests to extend established deadlines will be reviewed for good cause even if parties agree to the extension.” Initial Order (Dkt. 7) (December 9, 2025). In the Presiding Officer’s July 14 Order Following Status Conference (Dkt. 36) (“July 14 Order”), the Parties were ordered to submit a joint status report explaining, among other things, “[w]hether the parties have agreed to

request an extension of the discovery deadline and briefing schedule by a particular amount of time, and if so, provide that information.” July 14 Order at 2. On Friday July 17, 2026, the Parties submitted their Joint Status Report explaining that they “agree to extend discovery by 60 days in order to take the testimony of Michael Haahr Hansen... The parties also agree to submit a joint request for an extension of the discovery deadline on Monday, July 20, 2026, which memorializes this agreement.” Joint Status Report at 3. The instant Joint Motion is the submission contemplated by the Joint Status Report.

As set forth in Complainant’s prior submissions dated June 16, July 2, and July 6, good cause exists to extend the discovery schedule for the limited purpose of completing the deposition of Mr. Michael Haahr Hansen. Despite Complainant’s diligent efforts, the testimony of Mr. Haahr Hansen could not be obtained prior to the close of discovery and has since been further delayed due to his change in employment status and decision to decline to appear voluntarily for deposition. As a result of these further delays, a corresponding extension of the briefing schedule is necessary to provide the Parties with sufficient time to prepare their submissions following the completion of Mr. Haahr Hansen’s deposition. The Parties are now working collaboratively to carry out the deposition of Mr. Haahr Hansen, whose testimony is necessary to ensure the development of a full record.

Based on the good cause shown above and in prior submissions by Complainant, the Parties respectfully request the extension and resetting of the deadlines as they were set in the Presiding Officer’s June 12, 2026 Order Following Status Conference (Dkt. 27) as follows:

Event	Current Date	New Proposed Date
Close of All Discovery Except the Deposition of Michael Haahr Hansen	June 13, 2026	No Change
Last Day to Depose Michael Haahr Hansen	July 13, 2026	September 18, 2026
Complainant's brief, proposed findings of fact, and appendix	August 13, 2026	October 12, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	September 14, 2026	November 13, 2026
Complainant's reply brief and responses to proposed findings of fact	October 24, 2026	December 23, 2026

The Parties pray for an Order extending the current discovery deadlines in this case as outlined above.¹

¹ Holland and Knight LLP (the "Firm") recognizes its continuing obligation to represent Cool Living LLC in the deposition of Mr. Haahr Hansen under the Presiding Officer's previous orders. The Firm respectfully requests an Order by the Presiding Officer directing their continued representation of Cool Living LLC for the limited purpose of deposing Mr. Haahr Hansen, after which the representation shall cease pursuant to the Presiding Officer's Order on Motion to Withdraw (Dkt. 22). For the sake of good order, the Firm advises it defended the depositions of Cool Living's Anna Farkas and Tony Hopkins, as was ordered, and will complete the "ancillary" assistance with any errata sheets within the extended period.

Respectfully Submitted,

Dated: July 21, 2026

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